

Case Management Conference at 2:30 p.m. July 29 and in related case 25CV478357 are
CONTINUED to December 2, 2026.

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Calendar Line 10

Case Name: *Herlinda Estrada et al. v. Chattem Inc. et al.*
Case No.: 25CV483219

Plaintiffs Herlinda Meza Estrada and Hector Guadalupe Estrada move to compel nonparty U.C. San Diego Health (“UCSD”) to comply with Plaintiffs’ deposition subpoena for the production of business records (pathology materials), personally served on UCSD on April 24, 2026. The subpoena seeks the release of Mrs. Estrada’s own formalin-fixed, paraffin-embedded (“FFPE”) pathology tissue blocks D1 through D16 from her August 2025 surgery (Accession No. HSC-25-30913). UCSD did not serve written objections, did not move to quash or modify the subpoena, and has filed no opposition to this motion despite personal service and confirmed receipt.

The Court GRANTS the motion for the reasons stated below. The Court orders UCSD to produce to Plaintiffs the pathology specimens contained in blocks D1 through D16 (Accession No. HSC-25-30913) within five (5) calendar days of service of notice of this order.

I. Background

This is an asbestos personal-injury action. Plaintiff Herlinda Meza Estrada, age 72, alleges that her terminal, stage III malignant mesothelioma was caused by exposure to asbestos, asbestiform fibers, and fibrous talc in Defendants’ cosmetic talcum-powder products. Defendants deny that their products contain asbestos. Considering Mrs. Estrada’s condition, the Court has granted calendar preference and set trial for September 14, 2026.

In August 2025, Mrs. Estrada underwent a pleurectomy and decortication, left hemidiaphragm resection, and pericardial resection at UCSD. Tissue removed during that surgery was preserved by UCSD into nineteen FFPE blocks, including blocks D1 through D16 (left pleurectomy, visceral and parietal, and decortication). According to the surgical pathology report, the D-specimen blocks contain representative sections of tissue (D1–D10) and full-thickness sections of pleura (D11–D12), pericardium (D13–D14), and diaphragm (D15–D16). (Plaintiffs’ Memorandum of Points and Authorities (“Memo”), pp. 7:12–8:1; Declaration of Angelina Austin (“Austin Decl.”), ¶ 14 & Ex. 6 (Surgical Pathology Report).)